

FOOD SAFETY AND STANDARDS LICENSING AND REGISTRATION OF FOOD BUSINESS REGULATIONS, 2011

Licensing and Registration of food business is one of the important regulations made under Food Safety and Standards Act, 2006. As per Section 31 of the Act any person engaged in production, processing, storage , distribution, sale and import of any food is required to obtain a license from the designated authority at Central or State level. Carrying out food business with a valid license shall attract imprisonment up to six months and penalty up to five lakhs rupees as per Section 63 of Food Safety and Standards Act, 2006. However Petty Food Business Operators are exempted from licensing, they are required to be registered under local authority, appointed by the Commissioner of Food Safety of respective State.

Petty Food Business Operator: Who manufactures or sells articles of food himself such as petty retailers, hawkers, itinerant vendors, temporary stall holders or street food vendors or who distributes food in any religious or social gathering, except caterer.

Category of Petty Food Business Operators:

Tiny manufacturer or seller:

- (i) whose annual turnover does not exceed Rs 12 lakhs
- (ii) whose production capacity does not exceed 100kg per day, except milk & milk products and meat & meat products
- (iii) whose procurement or handling of milk is up to 500 litres per day
- (iv) whose slaughtering capacity per day of 2 large animals or 10 small animals or 50 poultry birds

Producer of milk who are registered members of Registered Cooperative Societies under Cooperative Societies Act and supply or sell entire quantity of milk to the Society are exempted from Registration.

Category of Food Business Operators or units fall under Central license:

- (i) Dairy units having milk handling/ processing capacity up to 50,000 liters /day or milk solids 2500 MT per annum
- (ii) Vegetable oil processing units or units process oil by solvent extraction or refineries including oil expeller units having installed capacity more than 2 MT per day
- (iii) Slaughter houses having slaughtering capacity per day more than 50 large animals or 150 small animals or 1000 poultry birds

- (iv) Meat processing units having capacity to handle/process more than 500kg of meat per day or 150 MT of meat per annum
- (v) All other processing units including Re-packers or Re-labelers having installed capacity more than 2 MT per day, except rice, grains, cereals and pulses milling units
- (vi) All importers of food including food ingredients and additives
- (vii) 100% export oriented units
- (viii) Any food which does not fall under any of the category or deviates from prescribed standards for ingredients or additives, safety of which has not been established through these Regulations or containing ingredients which are being used first time in the country
- (ix) Food catering services in establishments and units under Central Government agencies like Railways, Airlines, Seaports, Defence etc.
- (x) Food business operator operating two or more than two States

All Food Business Operators or units whose installed/ handling/ processing capacities are in between Registration and Central licensing category as mentioned above fall under State Licensing.

Registration Authority:

Designated Officer or Food Safety Officer or any official at Panchayat or Municipal Corporation in an area notified by the State Food Safety Commissioner is the Registration Authority in that area.

Licensing Authority:

- (i) **Central Licensing Authority:** Designated Officer appointed by the Chief Executive Officer, FSSAI in the capacity of Commissioner of Food Safety, is the Licensing Officer for Central Licensing in the respective Zone. There are 5 Zonal Offices for Central Licensing located in Delhi for Northern Region, Mumbai for Western Region, Chennai for Southern Region, Kolkata for Eastern Region and Gauhati for North Eastern Region.
- (ii) **State Licensing Authority:** Designated Officers appointed by Commissioners of Food Safety of a State/ UT are Licensing Authorities for State licensing at District level.

Procedure for Registration: For Registration one needs to apply on a simple application Form A affixing his photograph on it with Registration fee of Rs 100/- and a declaration of compliance of basic hygienic and safety requirements as provided under Part I, Schedule 4 of the Regulations. The application is to be processed within 7 days, further information, if any or

inspection, if required, it is to be done within 15 days and Registration Certificate is to be issued within 30 days of submission of application. In case grant of Registration Certificate is refused, such decision is to be communicated to the FBO within 30 days of submission of application, failing which the Petty FBO may start his business.

Procedure for License: For license, application is to be made on application Form B along with prescribed license fee and relevant documents, either online or physically, where online system is not in place. License fees for Central License may be paid online and online or through Treasury Challan to a designated bank for State License, wherever online system is in operation. Amount of License fees to be paid for different categories of License has been prescribed under Schedule 3 of the Regulations. Application and documents are to be processed within 15 days of receipt of application, further information, if any or inspection, if required it is to be completed within 30 days and license is to be granted within 60 days from the date of submission of complete application. In case of refusal of license such decision shall be communicated with reason for refusal to the FBO within aforesaid stipulated time, failing which a FBO may start his business. A License/RC holder can apply for grant or renewal of License/Registration for 1 to 5 years remitting license/registration fee equal to such period.

Renewal of License/ RC: One needs to apply for renewal of Registration or License 30 days prior to expiry of License/ Registration Certificate along with necessary documents and requisite License/Registration fee. He may apply for renewal beyond 30 days, but before expiry date by paying Rs 100/- per day as penalty, in case of renewal of License. However no late fee is levied in case of renewal of Registration for that period.

Suspension and cancellation of License: A License or Registration may be suspended if the holders of License/Registration Certificate does not comply with the Improvement Notice issued to him by the Designated Officer for non-compliance of any provision/s of the Act or Regulations made there under within the stipulated time as specified in the notice which shall not be less than 15 days. If the FBO still fails to comply with the direction or observations made in the Improvement Notice, his License/Registration may be cancelled after giving an opportunity to show cause. In case the License/Registration is cancelled one may apply afresh after 3 months of cancellation of the License/Registration to the concerned Licensing/Registration Authority, if all the observations made in the Improvement Notice are complied with. The Designated Officer may suspend a License forthwith in the interest of public health, with the reasoning recorded in writing.

Modification of Registration Certificate/ License : For any change/modification in License or Registration Certificate like expansion of capacity or addition of products or any other change one needs to apply with relevant documents along with original License/RC and fee equivalent

to one year license fee. Licensing Officer shall amend the License/RC with necessary incorporation within 30 days of receipt of application.

Issue of Duplicate License/ RC: If Original Registration or License is lost or destroyed one may apply within its validity period for a Duplicate Registration Certificate or License by paying 10% of the applicable fee. A License or RC is issued with same number marking prominently as “Duplicate”.

Transfer of License/RC: In case of death of a License/RC holder the License /RC may be transferred to the legal heir after necessary enquiry within 90 days of death of the holder, but within validity period of License/RC.

A FBO aggrieved by any Order/decision of Registration or Licensing Authority may appeal to the CEO, FSSAI for Central License and Commissioner of Food Safety of State for State License/Registration.

Necessary documents for grant/ modification of License:

- (i) Blueprint/Plan layout showing processing operations and storage areas, in case of manufacturing units
- (ii) List of machinery & equipment showing installed capacity, number and HP, in case of manufacturing units
- (iii) Chemical & Bacteriological analysis report of water as per BIS potable water standards and specific requirements for water used for Packaged Drinking/ Mineral /Carbonated Water from a NABL accredited FSSAI approved Laboratory, in case of manufacturing units. Report shall clearly indicate the Lab representative who has drawn the sample of water and remarks of conforming to the prescribed standards
- (iv) Photo ID card with address proof issued by Government authority of Proprietor/ Partner/ Director/ Authorized Signatory
- (v) Proof of possession of premises (Electricity bill/Telephone bill/Rent agreement etc.)
- (vi) Partnership Deed/Affidavit/ Memorandum & Article of Association
- (vii) List of category of food to be manufactured/Re-packed/ Re-labelled
- (viii) Authority letter authorizing the person/(s) for assisting inspection, collection of samples, packing and dispatch of samples to Laboratory
- (ix) Nomination on prescribed Form IX along with photo ID of Nominee with address proof
- (x) Food Safety Management System(FSMS) Certificate or Plan
- (xi) Degree / Diploma Certificate of Technical person to supervise production having qualifications as prescribed in the Regulations

- (xii) NOC from manufacturer in case of Re-packing/ Re-labelling License
- (xiii) Source of procurement of milk and procurement plan including location of milk collection centres, in case of dairy units
- (xiv) Source of procurement of raw meat, in case of meat processing units
- (xv) NOC from Municipality or Local body or State Pollution Control Board, except notified industrial area

(Documents are specific to specific type/ category of License)

Necessary documents for Renewal of License:

- (i) Declaration regarding any change/no change in information given at the time of grant of License
- (ii) Food Safety Management System(FSMS) Certificate or Plan
- (iii) Degree / Diploma Certificate of Technical person to supervise production having qualifications as prescribed in the Regulations
- (iv) Medical fitness Certificate of workers
- (v) Nomination in Form IX with ID of Nominee

Some conditions for Registration/License :

- (i) Display true copy of Registration Certificate/License at prominent place of the premises
- (ii) Give necessary access to Licensing authorities or their authorized personnel to the premises as and when required
- (iii) Maintain sanitary & hygienic requirements as laid down under Schedule 4
- (iv) Employ at least one Technical person with qualifications as prescribed under the Regulations to supervise production
- (v) Furnish Annual Return in prescribed forms. Half yearly Return in case of milk & milk products
- (vi) Maintain daily records of raw materials, production, sale etc.
- (vii) Ensure that no product other than that indicated in the License are manufactured
- (viii) Ensure periodic (half yearly) testing of relevant chemical and microbiological contaminants to ensure that these are within safe limit as prescribed under relevant Regulations
- (ix) Ensure Clean-in Place (CIP) systems for machinery & equipment wherever necessary
- (x) Ensure required temperature maintained throughout supply chain including chilling, transportation, storage etc.

- (xi) Manufacturer/importer/distributors shall buy or sell only from or to Registered/Licensed vendors
- (xii) Hotels, restaurants and such other stalls selling savories, sweets etc shall put up a Notice Board displaying list of articles that have been cooked in ghee, edible oils or other fats
- (xiii) FBOs selling cooked or prepared food shall display a Notice Board containing the nature of articles being exposed for sale.
- (xiv) Producer of vegetable oils and their products shall have own Analytical Laboratory
- (xv) Every quantity of solvent extracted oil, edible groundnut flour or edible coconut flour or both purchased by a registered user shall be used by him in his own factory entirely for the intended purpose and shall not be re-sold or otherwise transferred to any other person.